

SENATE No. 3099

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to wakesurfing.

PETITION OF:

NAME:

Ryan C. Fattman

DISTRICT/ADDRESS:

Worcester and Hampden

SENATE No. 3099

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 3099) (subject to Joint Rule 12) of Ryan C. Fattman for legislation to implement fines on motorboat operators engaged in wakesurfing activity in close proximity to the shoreline. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to wakesurfing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 90B of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by inserting the following new definition:-

3 “Wakesurfing activity” - an activity that involves using a surfboard, wakeboard or similar
4 device while being propelled by a motorboat's wake or while on or in a motorboat's wake
5 directly behind that motorboat

6 SECTION 2. Chapter 90B of the General Laws, as so appearing, is hereby amended by
7 inserting after section 9F the following new section:-

8 “Section 9G. A person may not operate a motorboat engaged in wakesurfing activity in
9 less than 15 feet of water or within 300 feet of the shoreline on waters of the commonwealth.

10 Any person engaging in wakesurfing activity must wear an approved personal flotation device.

11 The division of law enforcement within the department of fisheries and wildlife is hereby

authorized and directed to establish an educational safety program for the operation of
wakesurfing activity.

SECTION 3. Chapter 90B of the General Laws is hereby amended by inserting after
section 14 the following new section:-

“Section 14A. Any person who violates section 9G shall be subject to a civil fine as
follows: not more than \$75 for a first offense; not more than \$250 for a second offense; and not
more than \$500 for a third or subsequent offense. Upon a third or subsequent violation, the
operator’s boating safety certificate shall be suspended, and the registration of the vessel used in
the wakesurfing activity shall be suspended for a period of 90 days.”